



## **Article: 15**

### **Warrant Article Title:**

BYLAW AMENDMENT / ADOPTION OF EQUITY BYLAW  
PURSUANT TO MASSACHUSETTS CANNABIS CONTROL  
COMMISSION REGULATIONS

### **Warrant Article Text:**

To see if the Town will vote to amend Title I of the Town Bylaws to adopt a Municipal Equity Bylaw pursuant to regulations promulgated by the Massachusetts Cannabis Control Commission; or take any action related thereto.

### **Requested By:**

the Town Manager

### **Report Excerpt:**

Vote and comment to Town Meeting - No Action (5-0).

This article was inserted at the request of the Town Manager as a place holder for the possible submission of a draft cannabis municipal equity bylaw for the Board and Town Meeting's consideration. The Board heard from Town Counsel, who reported that after review of applicable law and the model bylaw currently offered by the state's Cannabis Control Commission ("CCC"), he recommended no action on this article.

Pursuant to applicable law, host communities are required to pursue a bylaw or local process that meets the Commission's minimum acceptable equity standards for promoting and encouraging full participation in the regulated marijuana industry. Unfortunately, CCC's current regulations conflict with state zoning law and are so extraordinarily vague that compliance of any

potential bylaw with the regulations would be highly uncertain. Given this, and since the overwhelming majority of host communities have not yet adopted any of the CCC's suggested compliance measures, the Board recommends that no action be taken at this time to adopt the CCC's cannabis model equity bylaw.

**Vote Language:**

That no action be taken on Article 15.

[Select Board Report](#)